

3.	24CV1851	E.B. v. EL DORADO COUNTY OFFICE OF EDUCATION
Motion to Compel Deposition		

This is a civil action for damages brought by Plaintiff E.B., a minor, by and through her guardian ad litem Diand Freas ("Plaintiff") against El Dorado County Office of Education ("EDCOE"). Plaintiff alleges that Tarik Manasrah, a van driver formerly employed by EDCOE, committed sexual misconduct against her. Plaintiff brings several negligence-based causes of action against EDCOE, including that they negligently hired Mr. Manasrah.

Plaintiff argues that Brooke Simas, Plaintiff's treating therapist, has evidence relevant to several critical areas of this litigation, including knowledge of the abuse that occurred and Plaintiff's emotion distress resulting from the abuse. Ms. Simas was served with a deposition subpoena, which her counsel accepted on her behalf. Plaintiff states that through counsel, Ms. Simas refused to appear for the deposition on the basis that the psychotherapist-patient privilege prevents her from testifying. Plaintiff's guardian ad litem has waived that privilege, which is held exclusively by Plaintiff. As such, Plaintiff moves the Court to compel Ms. Simas's appearance.

A subpoenaing party may move to compel under California Code of Civil Procedure Section 1987.1. Section 1987.1 provides that the court, upon noticed motion, may make an order compelling a witness to comply with a deposition subpoena. See CCP § 1987.1. Regarding Ms. Simas's refusal to be deposed based on privilege, that privilege is waived when a plaintiff puts her mental state at issue in litigation. *See, e.g., In re M.L.* (2012) 210 Cal.App.4th 1457, 1473 ("[W]hen a patient has, himself, placed his medical condition at issue in the case he may no longer justifiably seek protection from its exposure and 'in all fairness, a patient ought not to be allowed to establish a condition without a full inquiry into the circumstances.'").

Further, Plaintiff's guardian ad litem, who is her mother, waived privilege in this case. In California, the patient, not the psychotherapist, holds the privilege. See Evid. Code § 1014 ("[T]he patient . . . has a privilege to refuse to disclose, and to prevent another from disclosing, a confidential communication between patient and psychotherapist. . . ."). Once waived, the psychotherapist cannot invoke the privilege in order to refuse deposition questions. *See In re Lifschutz* (1970) 2 Cal.3d 415, 430 ("The psychotherapist . . . cannot assert his patient's privilege if that privilege has been waived. . . .").

The Court hereby grants the motion, and the parties are ordered to select a mutually agreeable date.

TENTATIVE RULING #3: THE MOTION TO COMPEL DEPOSITION IS GRANTED. PARTIES TO SELECT A MUTUALLY AGREEABLE DATE.

May 22, 2026
Dept. 9
Tentative Rulings

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.